

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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CHARLES FLETCHER

COMPLAINT

PLAINTIFF

INDEX NO.:

- v -

CITY OF NEW YORK, P.O. Simpson, (Tax Reg.#957168)
JOHN DOE N.Y.P.D. OFFICER's #1 - 5, FINO;
JOHN DOE FINO #1 - 3

DEFENDANT(S).

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The plaintiff CHARLES FLETCHER by his attorney William T. Martin, Esq., as and for his complaint against defendant CITY OF NEW YORK, P.O. Simpson, (Tax Reg.#957168) JOHN DOE N.Y.P.D. OFFICER's #1 - 5, FINO, JOHN DOE FINON #1 - 3 respectfully set forth and allege that:

Jurisdiction And Venue

1. The plaintiff is a resident of the County of Queens, in the City of New York and at all times material to the averments in the complaint was a resident of Queens.

2. The defendant City of New York is a geographic and political entity within the state of New York which consists of five contiguous boroughs. The City of New York City maintains many agencies for the benefit of the citizens of the City of New York and the public welfare of all persons within the jurisdictional boundaries of the City of New York. The New York Police Department (hereinafter "NYPD") is an agency within the City of New York which maintains a police force for the public good and employs both civilian and police personnel.

3. The defendant(s) P.O. Simpson, (Tax Reg.#957168), and JOHN DOE POLICE OFFICERS 1 - 5, (hereinafter "John Doe") are employees of the NYPD and at all times material to the averments in the complaint were actively employed by the

NYPD and at all times were performing duties within the scope of their employment

4. That FINO is a corporation operating in the state of New York, and licensed and authorized to conduct business within the state of New York and that it maintained a clothing store in the borough of Queens with various employees.

5. JOHN DOE FINO #1 - 3 (hereinafter "JD FINO") were employees of the defendant FINO and were at all times acting within the scope of their employment at all times material to the complaint.

6. Plaintiff has filed suit with this Court within the applicable statute of limitations period.

7. Plaintiff filed a Notice of Claim on or about September, 2018 and subsequent to the filing of the Notice of Claim a 50H hearing was held and more than thirty (30) days have transpired since it was filed and there has been no adjustment of the plaintiff's claim.

PRELIMINARY STATEMENT

8. On or about August 29, 2018, at or about 7 p.m., the claimant was in a clothes store, FINO located at 164-10 Jamaica Drive in Queens, N.Y. After he had finished browsing in the store he went to leave.

9. Once he went to leave the store he was locked in and forcibly detained and assaulted by three employees of FINO, who accused him of shop lifting. During the time that he was detained, by these three employees, he was struck about his body and sustained physical injuries.

10. Upon information and belief the JD FINO #1 -3 employees called the

police and members of NYPD appeared at FINO. P.O. Simpson, (Tax Reg.#957168) of the 103 Pct. arrived on the scene and conducted a cursory investigation into the circumstances and allegations which warranted his appearance and after a search of the claimant's back pack determined that he had not stolen anything belonging to FINO.

11. The plaintiff requested defendant P.O. Simpson to arrest the three store workers who had accosted him, assaulted him and unlawfully detained him in the store when he went to leave and caused him to sustain physical injuries while forcibly detaining him.

12. Instead of arresting the three JD FINO defendant employees, who had just assaulted the plaintiff, the defendant P.O. Simpson arrested the plaintiff and charged him with criminal trespass.

13. The plaintiff had entered FINO during normal business hours. The defendant P.O. Simpson charged the plaintiff with trespass (in a store open to the public) and refused to arrest or charge the three JD FINO defendants who had assaulted him.

14. The plaintiff was given a desk appearance ticket by defendant P.O. Simpson and given a court date, for November 15, 2018. On or about November 15, 2018 plaintiff appeared at court only to find out that there were no formal charges lodged with the court; and they were unable to verify the charges which had been lodged against him.

15. The plaintiff denies the allegations which were lodged against him by defendant P.O. Simpson and contends that the aforementioned officer filed false criminal charges, which resulted in the false arrest, and imprisonment of the claimant; and that the prosecution and arrest were done with malicious intent.

STATEMENT OF FACTS

16. On or about August 29, 2018, at or about 7 p.m., the claimant was in a clothes store, FINO located at 164-10 Jamaica Drive in Queens, N.Y.. he had stopped at the store and after he finished browsing in the store, he went to leave.

17. Once he went to leave the store he was locked in and forcibly detained and assaulted by three employees JD FINO, who accused him of shop lifting. During the time that he was detained, by these three employees, he was struck about his body and sustained physical injuries. Upon information and belief the employees called the police and members of NYPD appeared at FINO.

18. P.O. Simpson, (Tax Reg.#957168) of the 103 Pct. arrived on the scene and conducted a cursory investigation into the allegations and after a search of the claimant's backpack determined that he had not stolen anything.

19. The plaintiff requested defendant P.O. Simpson to arrest the three store workers who had accosted him, assaulted him and unlawfully detained him in the store when he went to leave and caused him to sustain physical injuries while forcibly detaining him.

20. Instead of arresting the three employees, who had just assaulted the complainant, the officer arrested the complainant and charged him with criminal trespass.

21. The plaintiff had entered FINO during normal business hours. The officer charged him with trespass and refused to arrest or charge the three persons who had assaulted him.

22. The plaintiff was given a desk appearance ticket and given a court date for November 15, 2018.

23. On September 1, 2018, upon information and belief, the plaintiff went to Nassau University Medical Center where he received treatment for the injuries he sustained during the assault in the store by the three FINO defendant/employees.

24. The plaintiff denied the allegations lodged against him by defendant P.O. Simpson and contends that the aforementioned officer filed false criminal charges, which resulted in the false arrest, and imprisonment of the claimant; and that the prosecution and arrest were done with malicious intent.

25. The plaintiff appeared in court, only to discover, after discussions with court personnel, that the false charges which resulted in the issuance of a desk appearance ticket were never filed officially or lodged with the court; due to this malfeasance the case was determined to be null and void.

FIRST CAUSE OF ACTION

FALSE ARREST

26.. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "25" with the same force and effect as if more fully set forth at length herein.

27. Defendant P.O. Simpson failed to properly investigate the allegations which the plaintiff raised against the three FINO defendant/employees; he failed to review store surveillance to ascertain what had transpired; he failed to properly investigate the allegations.

28. The plaintiff was issued a desk appearance ticket. The three FINO defendant/employees were not questioned my other members of NYPD and the officer made up the false charges (trespassing in a store open for business) on August 29, 2018.

29. Plaintiff after consulting with his counsel appeared in Queens criminal court to answer the DAT that he had been issued and despite the ticket information he possessed the court personnel were unable to find the corresponding documentation.

30. After some time, it became clear that he had been issued a bogus D.A.T. which was never filed in court but was given to the plaintiff to secure his return to court.

31. The charges turned out to be false and the case never came to fruition. As a result of the phony D.A.T plaintiff has been made to suffer damages in the sum of One Million Dollars (\$1,000,000.00).

SECOND CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

32. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked “1” through “31” with the same force and effect as if more fully set forth at length herein.

33. Defendants, CITY and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the Defendant P.O. Simpson, who was unfit for the performance of police duties on August 29, 2018, and who also prepared and filed false accusatory documents to cover his misconduct at the above mentioned location.

34. The failure of the defendant CITY and N.Y.P.D to hire, retain, train, supervise, discipline, discharge or in any other way adequately control the behavior of the individual police officer defendants in the exercise of their police functions, and their failure to enforce the laws of the State of New York and the regulations of N.Y.P.D is evidence of the reckless disregard for the rights of the public, including plaintiff, and

exhibited a lack of guidance and direction which prudent and reasonable individuals would display in employing persons to work for the N.Y.P.D.

35. Further defendant CITY and N.Y.P.D countenance, condone, ratify and continue the employment of the Defendant P.O. Simpson even though they were made aware of the ultra various acts of said Defendant P.O. Simpson and such forbearance, without consequences, fosters an atmosphere of lawlessness and implicit acceptance of falsifying accounts of criminality against the citizenry with impunity.

36. Such conduct has been allowed to exist and has created a culture of lawlessness that is carried out willfully, wantonly, maliciously and with reckless disregard for the rights of minorities in general and plaintiff's constitutional rights, specifically.

37. That by reason of the forgoing, plaintiff suffered economic and emotional injuries all to his damage in the sum of One Million Dollars (\$1,000,000.00).

THIRD CAUSE OF ACTION

False Imprisonment

38. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "37" the same force and effect as if more fully set forth at length herein.

39. The above-mentioned acts and conduct committed by the Defendant P.O. Simpson constituted false arrest without cause or justification and violated plaintiffs' rights under the Constitution and laws of the State of New York.

40. Defendant P.O. Simpson created and filed false accusatory documents and intended to confine plaintiff and, in fact, confined plaintiff and plaintiff was conscious of such confinement and there was no legal basis and it was not otherwise privileged.

41. The individual Defendant P.O. Simpson was at all times an agent, servant, and employee acting within the scope of his employment by Defendant CITY and N.Y.P.D and were aware of the fact that it was a crime to prepare and lodge a false accusatory instrument, to wit a phony D.A.T..

42. Plaintiff was at all times, material to this action lawfully upon the premises of FINO which was open to the public when he was accosted by the three FINO defendants and was lawfully enjoying his shopping.

43. Defendant P.O. Simpson detained the plaintiff at FINO where the D.A.T. was prepared by defendant P.O. Simpson, while the plaintiff was in custody; the D.A.T. was never properly filed with the court and turned out to be a nullity and was never filed/recorded with the court.

44. That as a result of the forgoing plaintiff was deprived of his liberty and he was conscious of his imprisonment.

45. That by reason of the foregoing, plaintiff suffered serious economic and emotional damages in the sum of One Million Dollars (\$1,000,000.00)._

FOURTH CAUSE OF ACTION

Malicious Prosecution

46. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "45" with the same force and effect as if more fully set forth at length herein.

47. That individual defendant P.O. Simpson brought charges against plaintiff that were false, which he knew or should have known was false through the exercise of due diligence.

48. That plaintiff faced prosecution on said false allegations, brought by the defendant P.O. Simpson , which he knew or should have known was false.

49. That the charges and prosecution of plaintiff was reckless, wanton, and malicious without any regard to the truth of the allegations, or the conduct of the defendants.

50. That the plaintiff had to consult with counsel to address the charges which as it turned out were never properly filed with the Queens criminal court.

51. That as a proximate result of the aforesaid acts and omissions by the defendant(s) the plaintiff has suffered general, pecuniary and compensatory damages.

52. That by reason of the forgoing, plaintiff suffered serious economic and emotional injuries all to his damage in the sum of One Million Dollars (\$1,000,000.00).

FIFTH CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

53. Plaintiff re-alleges paragraph “1” through “52” and incorporates them by reference as if fully set forth herein.

54. That plaintiff was falsely arrested and nearly prosecuted for crimes he did not commit.

55. That upon information and belief plaintiff sustained numerous bodily injuries after being assaulted by the three JD FINO employees.

56. Upon information and belief his injuries were considerable stressors in his life, to wit, health, permanent injuries and the ultimate disposition of the criminal charges in his favor.

57. Defendant City, defendant P.O. Simpson, and JD FINO defendants were

aware of the fact that plaintiff had been injured; by their actions and conduct towards him; and displayed extreme, callous and outrageous disregard; and intended to cause the plaintiff embarrassment, public humiliation, degradation, loss of self esteem and character causing him to suffer emotional and psychological injuries as a result of his arrest and their assault upon him. .

58. That the defendant City, defendant P.O. Simpson, and JD FINO defendants were designed to cause emotional distress resulting from his arrest and prosecution.

59. That plaintiff has in fact sustained emotional damages which have resulted in psychological damages, loss of sleep, irritability, impotence, low self-esteem and a loss of consortium.

60. Based upon the foregoing the plaintiff has sustained emotional distress which was intentionally inflicted as a result of being wrongfully arrested and his arrest was willful, wanton, and discriminatory; and, inclined to cause emotional distress and that plaintiff is entitled to judgment against defendant P.O. Simpson all to his damage in the sum of One Million Dollars (\$1,000,000.00).

SIXTH CAUSE OF ACTION

AGAINST THE CITY OF NEW YORK

61. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "60" with the same force and effect as if more fully set forth at length herein.

62. That as an employer of the Defendant City, defendant P.O. Simpson, and JD FINO defendants at the times of their intentional and negligent conduct as set forth

herein, the defendant CITY, is liable to the plaintiff under the laws of the defendant CITY and State of New York, for allowing said individual P.O. Simpson to act under color of law, and in violation of plaintiff's constitutional rights, as a member of the N.Y.P.D. and at all times they were acting within the scope of their employment.

63. On September 1, 2018, upon information and belief, the plaintiff went to Nassau University Medical Center where he received treatment for the injuries he sustained during the assault in the store by the three FINO defendant/employees.

64. That by reason of the forgoing, plaintiff suffered serious economic and emotional injuries all to his damage in the sum of One Million Dollars (\$1,000,000.00).

SEVENTH CAUSE OF ACTION

AGAINST JD FINO DEFENDANTS #1 - 3

65. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "64" with the same force and effect as if more fully set forth at length herein.

66. FINO is a NYS corporation licensed to operate and do business within the state of New York.

67. That the plaintiff entered defendant FINO's store located in Queens, NY. in order to look at their clothes which were offered to the public for purchase, during normal business hours.

68. There came a time after browsing that the plaintiff went to leave the store when he was accosted by JD FINO employees (hereinafter "JD FINO #1 - 3") who grabbed and searched him forcibly causing him to sustain physical injury.

69. On September 1, 2018, upon information and belief, the plaintiff went to

Nassau University Medical Center where he received treatment for the injuries he sustained during the assault in the store by the three FINO defendant/employees.

70. On September 1, 2018, upon information and belief, the plaintiff went to Nassau University Medical Center where he received treatment for the injuries he sustained during the assault in the store by the three FINO defendant/employees.

71. That by reason of the forgoing, plaintiff suffered serious economic and emotional injuries all to his damage in the sum of One Million Dollars (\$1,000,000.00).

WHEREFORE, Plaintiff requests judgment against the individual defendants CITY OF NEW YORK, P.O. SIMPSON, , FINO , and JD FINO # 1 - 3 , as follows:

1. As against Defendant CITY OF NEW YORK, general and compensatory damages in the sum of ONE MILLION DOLLARS (\$1,000,000.00) on the cause of action asserted against it, and
2. As against the individual defendant P.O. SIMPSON general and compensatory damages punitive damages in the sum of ONE MILLION DOLLARS (\$1,000,000.00) on the causes of action herein, and
3. As against FINO Defendants General and Compensatory damages general and compensatory damages in the sum of ONE MILLION DOLLARS (\$1,000,000.00) on the Sixth Cause of action asserted against it, and
4. As against JD FINO # 1 - 3 general and compensatory damages; punitive damages in the sum of ONE MILLION DOLLARS (\$1,000,000.00) on the Sixth Cause of action asserted against it, and
5. Cost of this action,
6. And such other and further relief as may deem to be just and proper.

DATED: July 9, 2021
Westchester, N.Y.

Respectfully submitted,

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